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OCCUPIER'S LIABILITY

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Abstract

Occupier's liability is a branch of the law of torts meant to ensure that premises are kept sufficiently safe. It creates liability for owners or occupiers of premises which are left in dangerous state likely to injure others who may be lawfully be there. The tort imposes a general duty of care on the occupier to keep premises safe. It creates liability for failure to keep premises safe. Occupier's liability refers to the legal responsibility of a person or entity who owns or controls a property for injuries or damages that occur on the premises. An occupier is defined as a party who exercises an element of control over premises as per the case of *Wheat V Lacons & Co. Ltd* where Lord Denning stated that "wherever a person has a sufficient degree of control over premises that he ought to realize that any failure on his part to use care may result in injury to a person coming lawfully there, then he is an 'occupier' and he is under a duty to his 'visitor' to use reasonable care. In order to be an occupier, it is not necessary to have entire control over the premises; he need not have exclusive occupation. He may share the control with others. Two or more may be 'occupiers' and each is under a duty to use care towards persons coming lawfully on the premises, dependent on his degree of control"

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With aid of relevant authorities, discuss the law on occupier's liability.

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Occupier's liability is a branch of the law of torts meant to ensure that premises are kept sufficiently safe. It creates liability for owners or occupiers of premises which are left in dangerous state likely to injure others who may be lawfully be there. The tort imposes a general duty of care on the occupier to keep premises safe. It creates liability for failure to keep premises safe.

Occupier's liability refers to the legal responsibility of a person or entity who owns or controls a property for injuries or damages that occur on the premises. The law on occupier's liability varies among jurisdictions, but there are some general principles that can be discussed.

This is the liability of an occupier of premises for damage done to visitors to the premises and extends to immovable as well moveable property, e.g. an open land house, railway stations and bridges, ships, gangways or even vehicles although lawyers prefer to treat injury in the latter as falling within common law of negligence.

Under ¹section 2, an occupier is defined as a person in occupation or control of premises, and in relation to premises, different parts of which are occupied by different persons, mean the respective persons in occupation or control of each part.

The law on occupier's liability is stated in ²**Wheat v Lacons & Co 1966**. The claimant and her family stayed in a public house, the Golfers Arm where her husband died after falling down the stairs and hitting his head. The stairs were steep and narrow. The handrail stopped two steps from the bottom of the stairs and there was no lighting.

¹ The NEMA Act

² Wheat v Lacons & Co 1966 AC 552

CUU Answer booklet

The claimant brought an action under Occupier's Liability Act of 1957 against the Brewery Co, Lacon, which owned the freehold of the Golfers Arm and against the Managers of the pub, Mr. and Mrs. Richardson, who occupied the pub as a licensee. The issues were whether the defendant owed a duty of care, and whether the D company was an occupier of the premises and plaintiff was a visitor in accordance with the Occupiers' Liability Act³

It was held that Both the Richardson and Lacon were occupiers for purposes of the ⁴Occupiers Liability Act of 1957 and therefore, both owed a common duty of care. It is possible to have more than one occupier.

In many countries, occupier's liability is governed by statutes or common law principles. These laws aim to ensure that occupiers take reasonable steps to maintain their premises in a safe condition and protect visitors from foreseeable harm.

The extent of an occupier's liability depends on the legal status of the visitor. Typically, visitors

are categorized as invitees, licensees, or trespassers.

Invitees are individuals who enter the premises for a business purpose or by invitation, such as customers in a store. Occupiers owe invitees the highest duty of care and must take reasonable steps to ensure their safety.

Licensees are individuals who have permission to enter the premises for their own purposes, such as social guests. Occupiers owe licensees a duty to warn them of any known dangers that may not be obvious. A person has been permitted by the occupier to enter upon his premises to carry on certain activities. The duty of the occupier is to warn the licensee of the danger on the occupier's premises failure of which shall make the occupier liable for the injury sustained by the licensee.

Trespassers are individuals who enter the premises without permission. Generally, occupiers have a lower duty of care towards trespassers, but they are still required to avoid causing deliberate harm.

As a general rule, the occupier does not owe a trespasser a duty of care because the trespasser comes at the occupier's premises illegally. However, the occupier shall be liable if he does

³ Occupiers' Liability Act of 1957.

⁴ Occupiers' Liability Act of 1957

anything willfully with intentions of hurting the trespasser. If the occupier has reason to believe that a trespasser might enter upon his premises, then he must warn him of the danger which the occupier has created.

In the case of ⁵**British Railways Board V Hetrington**, court held that with regard to trespassers that there must be actual knowledge of facts which make it likely that he will come on the land and actual knowledge of conditions on the land likely to injure a trespasser unaware of the danger. The occupier shall also be liable where the occupier has knowledge that trespassers are using his premises but does nothing to stop or prevent such activities then the occupier shall be deemed to have permitted the trespasser to carry on such activities on the premises like was stated in the case of **Lowery V Walker**

To establish liability, certain elements must be proven. These often include showing that the occupier owed a duty of care, that the duty was breached, and that the breach directly caused the injury or damage.

In some cases, occupiers may be able to limit their liability through warning signs, disclaimers,

or contractual agreements. However, these measures are not always effective and may be subject

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to scrutiny.

Defenses

Volenti non fit injuria, Visitors will be in situations where they are aware of the risk but choose to continue anyway. In *White v Blackmore* 1972 there was a notice excluding liability for injuries sustained on a motor racing ground, an action was brought over the death of one of the spectators. The deceased was killed when one of the support poles of the fence gave way and causing an entanglement of the deceased in the rope, he was thrown on the ground and subsequently died. Court held that volenti non fit injuria applies to a defendant who voluntarily encounters a risk which was fully known to him. The risk must be one which is obvious and has full knowledge of it.

Warning,

⁵British Railways Board V Hetrington (1972) AC 87

⁶white V Blackmore 1972 3 ALL ER 158

The occupier must ascertain whether there are any dangers as he can identify them that would not be obvious to his guest. He must give warning or must remove the danger. This defense can only be successful when the plaintiff is free to act upon knowledge or notice so as to avoid danger. Therefore, where the occupier issues warning to his lawful visitors, he will not be held liable as was held in the case of *Ashdown V Samuel & Sons Ltd*

Notice

This can be a defense if it is prominently displayed at the entrance of the premises and the plaintiff saw and appreciated it before making entry into the premises.

Independent contractor; As a general rule, an independent contractor must satisfy himself as to the safety of the part of the premises on which he is to work failure to do so shall exclude an occupier from liability.

Skilled visitors; An occupier can assume that the skilled visitor will have greater awareness of risks and the relevant precautions to that they should take.

In conclusion therefore, the law on occupier's liability as discussed herein above in my view does not effectively protect an occupier from unnecessary liability since it is stricter on the injury sustained by a visitor than intention of the occupier.

It's important to note that occupier's liability laws can vary significantly between jurisdictions, and this response provides only a general overview. It's advisable to consult the specific laws and regulations in your jurisdiction or seek legal advice when dealing with occupier's liability

matters.

⁷Ashdown V Samuel & Sons Ltd [1957] 1 ALL ER 35

Citations (0)

[References \(0\)](#)

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January 2012

John Murphy · Christian Witting

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